Revision Date:
11/01/2018

Background:
Title IV-D of the Social Security Act established the child and spousal support enforcement program. Legislative changes in the Federal Deficit Reduction Act of 1989, the Consolidated Omnibus Budget Reconciliation Act of 1985, and the Omnibus Budget Reconciliation Act of 1987, required that Medi-Cal applicants and beneficiaries must cooperate in medical support enforcement as a condition of eligibility.

Effective July 1, 1993, applicants and beneficiaries requesting Medi-Cal for a child born out of wedlock (see MPG 04.18.06 for Voluntary Declaration of Paternity) or with an absent parent, must cooperate by assigning to the State the applicants/beneficiaries medical support rights and payments, establishing paternity and providing information on the absent parent or any third party liable for medical support. In addition to the reformatting, this section has been updated to include policy previously issued in Memo 15-08.

Purpose:
This section provides an overview of medical support enforcement requirements.

Policy:
Applicants and beneficiaries must cooperate in medical support enforcement as a condition of eligibility.

Three agencies are involved in San Diego County's Child/Medical Support Enforcement Program. The three agencies are (1) the Health and Human Services Agency (HHSA), (2) the Local Child Support Agency (LCSA) and (3) the Office of Revenue Recovery (R&R). The duties and responsibilities of each agency are as follows:

A. Health and Human Services Agency (HHSA)
- Informs each Medi-Cal applicant/beneficiary of their support rights and responsibilities
- Provides and explains the necessary forms. Reviews completed forms, and
- Refers to the LCSA for child support action

B. Local Child Support Agency (LCSA)
- Locates absent parents
- Establishes, through court action, paternity and the absent parents support obligation
- Initiates, through court action, child/spousal support collection activities
- Prosecutes absent parents for non-payment of child/spousal support obligations

C. Office of Revenue Recovery (ORR)
- Establishes the account for collection of a support obligation, and
- Maintains the records for collection of the support obligations

Procedure:
None

References:
MEM 50185
ACWDL 11-25
County Policy

Sunset Date:
This policy will be reviewed for continuance by 11/30/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Revision Date:
11/01/2018

Background:
Title IV-D of the Social Security Act established the child and spousal support enforcement program. Legislative changes in the Federal Deficit Reduction Act of 1989, the Consolidated Omnibus Budget Reconciliation Act of 1985, and the Omnibus Budget Reconciliation Act of 1987, required that Medi-Cal applicants and beneficiaries must cooperate in medical support enforcement as a condition of eligibility. In addition to the reformatting, this section has been updated to include policy previously issued in Memo 15-08.

Purpose:
This section provides guidelines regarding medical support enforcement as a condition of eligibility.

Policy:
A. Condition of Eligibility
The applicant/beneficiary requesting Medi-Cal for a child born out of wedlock or with an absent parent must be informed that as a condition of eligibility they must:

- Assign to the State the applicant's or beneficiary's rights to any medical support and payments
- Cooperate in obtaining medical support and payments
- Cooperate in establishing paternity for a child born out of wedlock for who aid is requested
- Cooperate in identifying and location the absent parent, and
- Provide information about possible entitlement to medical support and payments available through any third party

The Support Packet is **not** required prior to an eligibility determination. Medi-Cal benefits shall not be delayed if the applicant/beneficiary is otherwise eligible. An individual who refuses to cooperate without good cause will be discontinued after allowing 30 days to provide. This will not affect the child(ren)'s Medi-Cal eligibility.

B. Cooperation
Cooperation includes the following:

- Provide the name of the alleged or absent parent, along with other known information, such as:
    - Address
    - Social Security number
    - telephone number
    - place of employment
    - school
    - names and addresses of relatives or associates
- Appear at interviews, hearing and legal proceedings when adequate notice of the interview is provided. Medi-Cal applicants/beneficiaries must have good cause for failure to appear
- If paternity is an issue, submit to genetic test, including tests of child, if necessary
- Provide any additional information reasonably obtainable by the applicant or beneficiary necessary to establish paternity or to establish, modify, or enforce a child support order

- An applicant/beneficiary is not required to sign a voluntary declaration as a condition of cooperation

Procedures:
None

References:
MEM 50379, Letter 200

Sunset Date:
This policy will be reviewed for continuance by 11/30/2021

Approval for Release:

11-19-18

Rick Wanne, Director
Eligibility Operations

Medical Support Referrals	Number	Page
	04.18.03	1 of 3

Revision Date:
11/01/2018

Background:
HHSA must take certain appropriate actions to complete medical support referrals. The applicant/beneficiary is required to cooperate by providing all the information necessary to enable the Human Services Specialist's (HSS) to complete medical support referrals. In addition to the reformatting, this section has been updated to include policy previously issued in Memo 15-08.

Purpose:
This section provides guidelines regarding medical support referrals.

Policy:

A. Medical Support Referral Required

Although the submission of the support packet is not required to determine eligibility, at application request that the applicant/beneficiary complete the packet. If the completed packet is not received, Medi-Cal benefits are not to be delayed if the applicant/beneficiary is otherwise eligible.

A referral is completed when an individual applies for Medi-Cal on behalf of a child:

- Who is born out of wedlock, or
- Not residing with one or both parents, or
- Whose parents are unmarried but living together and paternity has not been established

B. Medical Support Referral Not Required

A referral is not required for the following:

- Children over 18 years old
- Undocumented children (OBRA)
- Pregnant women and their other eligible child(ren) until the end of the 60-day postpartum period
- Applicants for minor consent services
- Children in Foster Care or Adoptive Aid Programs
- Children removed from parental custody by court order
- Applications for retroactive Medi-Cal only
- Situations where the absent parent is incarcerated or institutionalized
- Situations where the absent parent is already providing health insurance (a referral is needed if the health insurance is later terminated) unless paternity must be established.
- Adult Children - Adult children are children between the ages of 14 to 18 years who are not living in the home of a parent or caretaker relative and who do not have a parent, caretaker relative, or legal guardian handling any of their financial affairs. The parents do not claim the children as dependents in order to receive a tax credit or deduction for state or federal income tax purposes.
- Transitional Medi-Cal or Four-Month Continuing Medi-Cal Cases

If a Medical Support Referral was completed at intake, no referral is required at redetermination.

C. Referral Forms

The applicant/beneficiary is required to provide all the information necessary to complete the following forms. The forms must be signed by the applicant/beneficiary and filed in the case record.

1. CW 2.1 Child Support Notice and Agreement

The CW 2.1 Notice & Agreement is to be used with the CW 2.1 (Q), Support Questionnaire. The Notice & Agreement explains the assignment of the support, the benefits of Child Support Enforcement, cooperation requirements, the Attestation Statement, and the right to claim good cause (CW 51). Additional explanation of how to claim good cause is provided on the reverse side of the form.

The CW 2.1 Notice & Agreement is to be completed by all applicants or beneficiaries in absent parent and paternity cases. One CW 2.1 is required for **each** absent parent. In cases with more than one absent parent, modify the Agreement Section of the form by notating the name of each absent parent on each CW 2.1 Notice & Agreement.

2. CW 2.1 (Q)

The CW 2.1 (Q), Support Questionnaire is completed and signed by the applicant/beneficiary in all absent parent and paternity cases. It is completed on each absent parent or when the unmarried father is in the home and aid is requested for the common child(ren). Retain a copy in the case file.

Note: The CW 2.1 (Q) is not completed if a good cause determination is pending (CW 51).

3. CW 371 Referral to the Local Child Support Agency (LCSA)

The LCSA is required to conduct an interview with each applicant to obtain the necessary information to establish paternity. To ensure this requirement is met the LCSA coordinates phone interviews with applicants.

4. CW 51 Good Cause Claim and Determination Transmittal

Form CW 51 is completed when the customer claims good cause for refusal to cooperate with LCSA in child support matters. See MPG 04.18.04 for Good Cause.

Procedures:

D. Referral Procedures

Follow the steps below to process a referral at intake.

Step	Action
1	Explain that as a condition of eligibility the customer is required to cooperate with the LCSA by providing information, appearing at the LCSA office when requested, appearing as a witness in court, and obtaining support; or provide documentation to substantiate a claim of good cause for refusing to cooperate (if they claim good cause).
2	Obtain information from the applicant to complete the CW 2.1 and the CW 2.1 (Q) for each absent parent or unmarried father in the home.
3	Enter all the information received in CalWIN so that an accurate referral is sent electronically to the LCSA.

Note: It is no longer necessary to forward (paper/hard) copies of the CW 371, CW 2.1 and CW 2.1 (Q) to the LCSA at application. New applications, changes in case status, updates of demographic information or Good Cause (when entered in CalWIN) will create an electronic referral to the LCSA through the Child Support Enforcement (CSE) System. The only transaction referrals that are not sent electronically are Termination of Parental Rights (TPRs).

E. LCSA Service Request

Through the existing interface between CalWIN and CSE, the LCSA receives Electronic Service Requests (SRs) that must be processed within 20 calendar days. LCSA has three options to process the incoming SRs:

- Reject the SR in CSE with a complete explanation of why it was rejected including referral to HHSA for updates if needed
- Update the existing case in CSE
- Open a new case and reopen closed case in CSE

Within 10 days of opening/reopening a LCSA case, the HSS will contact the Custodial Parent (CP) by phone or letter to conduct an intake interview using the phone number and address listed in CalWIN. CP's failure to respond to LCSA's request will result in Non-Cooperation (Non-Coop) status. Non-Coop and/or Rescission of Non-Coop status are requested electronically via the interface between the LCSA and CalWIN as well as by LCSA to HHSA through a designated Supervisor.

Program Impact/s:

Automation: CalWIN sends an electronic referral to the statewide Child Support Enforcement (CSE) system as entries are entered in the Absent Parent/Child Support screens.

References:

MEM 50185
MEM Ltr 200, 202
MEM Proc 23D
ACWDL 95-69

Sunset Date:

This policy will be reviewed for continuance by 11/30/2021

Approval for Release:

11-19-18

Rick Wanne, Director
Eligibility Operations

Revision Date:
11/01/2018

Background:
The applicant/beneficiary may claim good cause for noncooperation in establishing paternity, medical support payments, or identifying third party liability if he/she feels there is a risk of emotional or physical harm to himself/herself or a child(ren) if a referral is made. This section has been updated to the current format, no other changes have been made.

Purpose:
This section provides guidelines for establishing good cause when an applicant/beneficiary fails to cooperate with Medical Support Enforcement requirements.

Policy:
When good cause is claimed, Medi-Cal is granted pending the good cause determination if the applicant is otherwise eligible. If the applicant chooses to withdraw or cancel a good cause claim, the Medi-Cal application is withdrawn, or aid is discontinued before the final determination is completed.

A. Good Cause Exists
The county must determine if the applicant/beneficiary, in fact, has good cause for failure to cooperate with medical support requirements.

Good cause exists if:

- Efforts to establish paternity or establish, modify or enforce a support obligation would increase the risk of physical, sexual, or emotional harm to the child for whom support is being sought
- Efforts to establish paternity or establish, modify or enforce a support obligation would increase the risk of physical, sexual, or emotional harm to the child for whom support is being sought
- The child for whom support is sought was conceived as a result of incest or rape. A conviction of incest or rape is not necessary for this reason to apply
- Legal proceedings for the adoption of the child are pending
- The applicant/beneficiary is being assisted to resolve the issue of whether to keep or relinquish a child for adoption
- The applicant/beneficiary is cooperation in good faith but is not able to identify or assist in locating the alleged father or absent parent
- Any other reason that would make efforts to establish paternity or establish, modify, or enforce a support obligation contrary to the interest of the child

B. Claiming Good Cause
To claim good cause, the applicant/beneficiary must:

1. Provide a written statement specifying the circumstances that the individual believes provides sufficient good cause for not cooperating and provide sufficient information such as the absent parent's name and address to permit an investigation.
2. Provide evidence that supports the claim of good cause within 20 days.

3. Make a request, if additional time is needed because of difficulty in obtaining the evidence. A reasonable additional period of time will be allowed with approval from a supervisor. Document the request and approval/denial in the case file.

C. Supporting Evidence

Evidence supporting a claim of good cause includes:

- Police, governmental agency, or court records, documentation from a domestic violence program, or a legal, clerical, medical, mental health, or other professional from whom the applicant/beneficiary has sought assistance in dealing with abuse, physical evidence of abuse, or any other evidence that supports the claim of good cause
- Statements under penalty of perjury from individuals, including the applicant/beneficiary with knowledge of the circumstances surrounding the good cause claim
- Birth certificates or medical, mental health, rape crisis, domestic violence program, or law enforcement records that indicate that the child was conceived as the result of incest or rape
- Court documents or other records that indicate legal proceedings for a pending adoption
- A written statement from a public or licensed private adoption agency that the applicant or beneficiary is being assisted by the agency to resolve the issue of whether to keep the child or relinquish the child to adoption

D. Applicant/Beneficiary Requests Assistance

If requested:

- Advise the applicant or beneficiary of how to obtain the necessary evidence and/or make a reasonable attempt to obtain the specific information if the applicant or beneficiary is unable to without assistance
- Contact with the absent parent or putative father will not be made unless necessary to establish a good cause claim. The applicant/beneficiary must be informed that the absent parent or putative father may be contacted unless they present evidence to support the claim of good cause, withdraw the application or request discontinuance.
- If a claim is based on the individual's anticipation of physical harm and evidence is not submitted, make reasonable efforts to examine, review and evaluate the good cause claim when:
  - The claim is credible without corroborative evidence, and
  - Evidence is not available

Note: Good cause can be found if the applicant's statement and the investigation documents that the individual has good cause for refusing to cooperate.

Procedure:

E. Good Cause Determination Process (CW 51 Form)

1. Applicant/Beneficiary Responsibility
   If the individual chooses to claim good cause for refusing to cooperate, a CW 51 form must be completed. Request the individual to indicate, by checking the appropriate box, the reason for the claim. Obtain the individual's signature. Enter the case name and number, names and birthdates of the children and the absent parent's name in the County-Use-only section (upper right-hand corner).

a. Instruct the individual to provide documentation of the good cause claim (per instructions on the reverse of the CW 2.1 Notice & Agreement) within 20 days
b. Proceed to grant the case with the parent/caretaker relative in the MFBU if otherwise eligible
c. If unable to obtain all the necessary documentation for the Good Cause Determination during the time the case is assigned to Intake, complete the procedure to the fullest extent possible, and indicate in the narrative that the Good Cause Determination is pending.
d. The individual's statement is required to specify the circumstances he/she believes provide sufficient reason to claim good cause for not cooperating further. Attach the statement to the CW 51.

2. HHSA Responsibility
If the individual requests more information about child support activities prior to claiming good cause, he/she may be referred to LCSA for an information only interview. A referral will be made by sending a CW 371.

The good cause determination must be completed in 45 days. This time standard may be extended in exceptional cases when the individual requests additional time because of difficulty in obtaining the evidence. A reasonable additional period of time can be allowed with the approval of a supervisor.

The individual submits the request for additional time in writing for approval or denial by a supervisor. The written request must be kept in the case file. Justification for additional time must be fully documented in the case comments.

When all available documentation is obtained and a good cause claim is based on physical harm to either child or parent, follow the steps below:

Step	Action
1	Complete the "Evidence Provided" section of the CW 51 form on all cases and Check off "No Investigation". (Acceptable evidence is identified on the back of the CW 2.1 Notice & Agreement).
2	Make a referral to the appropriate agency if the individual inquiries about or claims good cause for non-cooperation with the LCSA, or otherwise indicates that they or their children are at risk of abuse.
3	Attach any supporting documentation to the form CW 51 and forward to the supervisor. The supervisor will review and forward to the FRC Manager for the "Proposed and Final" determination to establish good cause exists/does not exist. **Note:** The HSS's **will not** forward the form CW 51 to the LCSA for the "Proposed Determination". The Manager completion is considered sufficient.
4	The Manager will sign the CW 51 and return the entire packet to the HSS. Retain a copy in the case record. Determine eligibility and send appropriate NOA.

Once good cause is established, it continues unless the parent/caretaker parent rescinds the claim for good cause and is able to cooperate with medical support enforcement. Review at redetermination to see if circumstances have changed; it is not necessary to process another claim for good cause.

F. Good Cause Does Not Exist
When good cause does not exits:

Step	Action
1	Complete and send Good Cause Determination for Child Support Enforcement – Denial NOA (07-292), informing the customer of the denial of the good cause claim.
2	Inform the applicant that there will be a referral to the LCSA and the applicant will be given the opportunity to cooperate. The applicant also has the option to withdraw the application for aid or to have the case closed. The applicant is to be informed that continued refusal to cooperate will result in ineligibility of his/her Medi-Cal, however, the children's Medi-Cal will continue.
3	Notify the LCSA, using the existing referral procedures in MPG 04.18.03 and the following forms: CW 371, CW 51, and CW 2.1 (Q) and CW 2.1.
4	Review the cooperation determination from LCSA and verify the evidence that the applicant/custodial parent failed or refused to cooperate without good cause. If this is the case, the applicant will be discontinued from Medi-Cal. This determination does not affect the eligibility of the children. Procedures in MPG 04.18.05B will be used for applicants determined non-cooperative by LCSA.

Program Impact/s:
None

References:
ACWDL 11-25
MEM 50771.5

Sunset Date:
This policy will be reviewed for continuance by 11/30/2021

Approval for Release:



11-19-18

Rick Wanne, Director
Eligibility Operations

Assignment of Medical Support Rights	Number	Page
	04.18.05	1 of 2

Revision Date:
11/01/2018

Background:
Assignment of Support Rights means that upon receipt of Medi-Cal, the individual agrees to transfer all medical support rights to the county. The County Office of Revenue Recovery (ORR) will collect and forward to HHSA Fiscal Division all medical support money as long as the individual remains on Medi-Cal. This section has been updated to the current format, no other changes have been made.

Purpose:
To provide policy guidelines for the assignment of medical support rights.

Policy:
As a condition of eligibility, each beneficiary is required to assign support rights and to cooperate with the HHSA, and the Local Child Support Agency (LCSA).

A. Cooperation Requirements

Assignment of Support Rights

An applicant will be presumed to be cooperative with LCSA when he/she completes the required forms and the referral is made to the LCSA.

Refusal to Assign Support Rights

Intake

If the parent/relative caretaker does not wish to or refuses to agree to the assignment of medical support rights, he/she must make refusal in writing on the CW 2.1 Notice & Agreement or provide a separate statement to this effect. When written refusal is made, the parent/relative caretaker is an ineligible member of the MFBU. Continue referral to LCSA by making appropriate entries in CalWIN.

Continuing

For granted cases, if a beneficiary contacts HHSA and indicates his/her refusal to assign medical support, request they provide a written statement. Within timely notice limitations, the non-cooperative parent/relative caretakers is determined ineligible to Medi-Cal. LCSA will continue to pursue the absent parent for the payment of a medical support contribution. When a contribution is secured it will go directly to ORR.

Procedure:

B. Non-Cooperation

LCSA Determination

When the LCSA indicates that a customer has not cooperated, and has not established good cause for failure to cooperate, LCSA will notify HHSA by entering a Noncooperation Status in the Child Support Enforcement System (CSE) which will generate a Child Support Noncooperation Alert in the CalWIN system.

HHSA Determination

Review the Child Support Noncooperation Alert in the CalWIN, and verify whether the beneficiary failed to cooperate and whether he/she had good cause for his/her failure.

LCSA's standardized responses and the good cause actions required are as follows:

Refuses to appear for appointment

Make an effort to contact the client by phone:

- If no contact, then send a timely NOA and remove the caretaker from the MFBU
- If contact is made within this timeframe or prior to discontinuance, a good cause determination must be completed

Refuses to provide verbal, written or documentary information

Follow the guidelines for non-cooperation with Medical Support.

Note: Send NOA which advises the beneficiary that his/her Medi-Cal will be restored when he/she cooperates with LCSA.

Removal of Child Support Noncooperation

Once the beneficiary reestablishes cooperation with the LCSA, the LCSA Officer will enter in the CSE system a Cooperation Status, which will generate a Child Support Cooperation Alert in the CalWIN system. Immediately reinstate Medi-Cal eligibility the month cooperation was obtained.

C. Disagrees with LCSA Determination

When determined that the beneficiary has cooperated to the fullest extent possible or has good cause for refusing to cooperate:

- Obtain a sworn statement in which the beneficiary explains the circumstances surrounding the noncooperation determination by the LCSA or the reasons he/she cannot cooperate or believes he/she cannot cooperate. Obtain verifications whenever possible.
- Submit all documents to Manager for review.

Managers Review

If the Manager determines that the beneficiary is:

- Non-cooperative, then follow HHSA determinations for actions taken.
- Cooperating to their fullest ability, then no action is to be taken to delete the parent/relative caretaker from the budget, and the beneficiary is considered cooperative.

Program Impact:

None

References:

MEM 50771.5
ACWDL 98-22, 05-08, 16-04

Sunset Date:

This policy will be reviewed for continuance by 11/30/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Voluntary Declaration of Paternity Program	Number	Page
	04.18.06	1 of 2

Revision Date:
11/01/2018

Background:
Effective January 2, 1997, unmarried parents applying for Medi-Cal are informed of the availability of the voluntary declaration of paternity, and given the option of both signing the forms to establish paternity. In addition to the reformatting, this section has been updated to include information previously issued in Memo 15-08.

Purpose:
To provide guidelines for a voluntary declaration of paternity.

Policy:
Unmarried parents have the option to voluntary declare paternity. The support packet is not required prior to granting Medi-Cal eligibility.

A. Choose Not to Sign
When unmarried parents choose to voluntary declare paternity and not sign the declaration of paternity, they must still cooperate with the LCSA in establishing paternity for Medi-Cal eligibility purposes.

B. Paternity Opportunity Program (POP)
The Paternity Opportunity Program (POP) is a statewide database which is administered by the Department of Child Support Services (DCSS) and processes voluntary declarations of paternity. A declaration signed by both the biological father and the unmarried mother filed with the DCSS establishes a legal parent-child relationship between the father and the child.

Effective May 3, 2002, it became mandatory for the LCSA to review this database prior to filing any court action in child support cases. The name of the absent parent listed on the CW 2.1 (Q) or electronic referral through the interface must match the POP database in order for the court action to proceed.

When the parents volunteer paternity, and there is no conflicting information, forms must be signed by both parents and witnessed by HHSA. Appropriate entries must be made in CalWIN to electronically refer correct information to the LCSA who reviews the POP database.

DCSS will forward the declaration to the State Office of Vital Records in Sacramento. After 60 days, the Declaration of Paternity will have the same force and effect of law as a judgment rendered by a court. No DCSS referral for paternity establishment should be made if the Declaration is signed by both parents.

C. FRC Medical Support Liaison
Each FRC office will designate a Supervisor to serve as the Medical Support Referral contact person for their office. DCSS will return incomplete or incorrect referrals received from district staff to the supervisor designated as the Medical Support Referral Liaison.

Any questions related to medical support should be discussed with their respective supervisor and not with DCSS, ORR, or Fiscal Services.

D. Conflicting Information

In the event there is a discrepancy, the LCSA will return the CW 2.1 (Q) to the FRC Child Support Liaison for action and follow-up. The customer is required to provide information necessary to complete a new CW 2.1 (Q) listing the absent parent(s) name as indicated on the POP database. The revised CW 2.1 (Q) is then to be forwarded to LCSA at Mail Stop C77 ATT: Case Intake.

The customer's failure to provide new information necessary to complete a new CW 2.1 (Q) or electronic referral through the interface, if POP information is disputed, **does** constitute non-cooperation with the LCSA and action will be taken to discontinue the customer after allowing 30 days to provide.

E. Minor Parent(s)

When either parent is a minor, the Declaration of Paternity does not establish paternity until 60 days after the minor parent (or if both parents are minor, then both parents) is (are) emancipated or 60 days after the 18th birthday of the minor parent(s), whichever occurs first.

F. Unmarried Father Residing in the Home

When the unmarried father is in the home and aid is requested for the common child(ren), still complete all the entries in the Absent Parent/Child Support Screens in order to generate the information through the interface to the Child Support Enforcement System (CSE). Although in the home, the parents will sign the CW 2.1 and the CW 2.1 (Q). Add the CW 2.1, CW 2.1 (Q) to the case file.

Procedure:

None

Program Impact:

None

References:

MEM 50771.5
ACWDL 98-22, 05-08, 16-04

Sunset Date:

This policy will be reviewed for continuance by 11/30/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operations